

Mohd. Muzeeb v. State of U.P. — writ dismissed; CGRF under clause 7.10

Allahabad High Court · Division Bench · 25 November 2020 · Writ-C No. 17725 of 2020 · WRIT - C No. - 17725 of 2020
· **Writ dismissed; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

The Allahabad High Court dismissed a writ challenging a 14.07.2020 representation-order on a tube-well connection, equipment and recovery. Disputed facts could not be re-adjudicated in writ jurisdiction. The consumer may approach the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner received an electricity connection under a general scheme for establishing a tube well. He alleged that neither equipment nor a transformer was provided, yet recovery proceedings were initiated against him. In Writ-C No. 8136 of 2020 the Court had allowed him to represent to the licensee; that representation was decided on 14 July 2020, recording that he was found running the tube well after purchasing the required equipment from the open market. He challenged that order in the present writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as alternative remedy

HOLDING

Disputed facts on tube-well equipment and recovery cannot be re-tried in writ; the consumer's remedy is the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code, 2005, and the petition is dismissed for that alternative remedy. ¶ 4-5

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10 Writ against a representation-order on tube-well supply, equipment and recovery dismissed; petitioner directed to CGRF under clause 7.10. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER EQUIPMENT OR A TRANSFORMER WAS SUPPLIED AND WHETHER RECOVERY WAS JUSTIFIED

Court declined to re-adjudicate disputed facts in writ and left the grievance to CGRF. ¶ 4